

facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503235	ORTIZ vs PINEDA	MOTION FOR INTERLOCUTORY JUDGMENT IN THE ALTERNATIVE MOTION FOR JUDGMENT

Tentative Ruling:

No opposition filed. Motion granted. Moving party shall prepare proposed order for Court's signature.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504902	SIEMS vs BLOCK	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

Motion for Leave to Amend is Granted.

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when

an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507439	CARPENTER vs FCA US LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Summary of Ruling: The Court grants Moss Bros’ motion as to Plaintiff’s 5th cause of action for negligent repair and stay the action.

Factual / Procedural Context:

Plaintiff Danielle N. Carpenter brings this action concerning a 2022 Jeep Wagoneer leased from Defendant J.A. Moss, Inc. dba Moss Bros Chrysler Dodge Jeep Ram Riverside (“Moss Bros”). The complaint asserts Song-Beverly claims against Defendant FCA US LLC [1st through 4th causes of action], a negligent repair claim against Moss Bros [5th cause of action], and a fraudulent/concealment claim against FCA [6th cause of action]. The negligent repair claim alleges that Moss Bros failed to use ordinary care and skill in storing, preparing, and repairing the vehicle.

Now, Moss Bros moves to compel arbitration of the negligent-repair claim and to stay the action, based on a lease agreement that Plaintiff signed at the time Plaintiff leased her vehicle. Moss Bros attaches a copy of the lease agreement. The agreement requires individual arbitration, at either party’s request, of any controversy between the lessee and lessor, arising out of or relating to the vehicle, the lease, any related agreement, or an alleged tort. Moss Bros also cites an arbitration provision in the warranty booklet with a 30-day opt out provision that was not exercised.

In opposition, Plaintiff argues that Moss Bros did not meet its initial burden to prove an agreement to arbitrate because its evidence does not properly authenticate the lease agreement. Plaintiff further argues that her claim falls outside the scope of the